



U.S. Department
of Transportation

**Pipeline and
Hazardous Materials
Safety Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

APR 27 2005

DOT-E 14139

EXPIRATION DATE: July 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Commodore Advanced Sciences, Inc.
Richland, Washington
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-time, one-way transportation in commerce of a non-DOT specification steel vessel containing solid sodium for disposal. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that the use of a non-DOT specification steel vessel is not authorized, except as provided herein.
5. BASIS: This exemption is based on the application of Commodore Advanced Sciences, Inc. dated January 24, 2005, and supplemental information dated February 17 and 18, 2005, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification steel vessel. The vessel is 4 feet long and is fabricated from a 36 inches diameter Schedule 40 pipe (0.375 inch wall thickness) and has elliptical heads. The vessel was originally pressure tested at 250 psig.

b. OPERATIONAL CONTROLS -

(1) Prior to transportation, the sodium must be fused solid and be padded with nitrogen or an inert gas. The pad pressure must be 5 psig or less. The steel vessel may not contain more than 250 pounds of sodium.

(2) All openings of the steel vessel must be closed with blank flanges.

(3) This exemption only authorizes the one-time, one-way transportation of the package described above from Oak Ridge, Tennessee to Mobile Alabama, by direct routing with no intermediate stops for loading or unloading.

(4) Transportation must be in an enclosed motor vehicle under the exclusive use of Commodore Advanced Sciences, Inc. Drums of solid sodium and drums of ammonium chloride are authorized as the only additional loadings on the vehicle with the steel vessel of sodium. All loadings must be loaded and unloaded at the same points of origin and destination.

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(5) The package must be securely blocked and braced during transportation in conformance with the requirements of §§ 393.100 - 393.106.

(6) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the steel vessel is not fitted with pressure relief devices and provide appropriate guidance in case of a fire.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be kept at the facility where the package is offered for transportation.

b. The non-DOT specification steel vessel must be plainly and durably marked "DOT-E 14139" as specified in § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the steel vessel covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

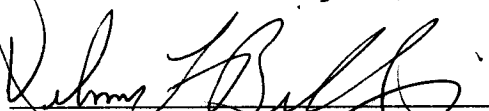
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTolson